

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JULY 01, 2026
8:30 a.m.

1. BRYCE SHIPLEY V. ELISE SHIPLEY

26FL0160

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on May 22, 2026, to set spousal support and child support, and award attorney fees and costs based on need. Proof of service filed May 22, 2026, shows the RFO was electronically served upon Petitioner that same day.

Respondent previously submitted an Income and Expense Declaration (I&E) on May 08, 2026, within three months of filing her RFO. Proof of service filed May 08, 2026, shows Respondent's I&E was electronically served upon Petitioner that same day.

On June 17, 2026, Petitioner filed a Responsive Declaration and I&E, both of which were electronically served upon Respondent that same day per the proof of service, also filed June 17, 2026.

On June 24, 2026, Respondent filed a Reply Declaration. Proof of service attached to the reply shows it was electronically served upon Petitioner the same day it was filed.

Based on the court's previous order regarding custody and visitation, Petitioner's custody timeshare is 25 percent.

The court calculates Petitioner's gross monthly income from his current employment to be \$6,066.00. Petitioner's monthly VA Disability benefits (\$4,568.00) constitute other nontaxable income.

The Respondent requests that the court also attribute to Petitioner the monthly income from the parties' two rental properties (Goldenwood: \$706.00 net; and Majesty: \$427.00 net), as well as the two condominiums that the parties recently sold (\$3,440.00 total per month). For purposes of support calculations, however, the court attributes the property income to neither party. Petitioner declares he is not receiving the money as personal income, but rather, is depositing the amounts — per the parties' agreement — into the parties' joint bank account, which, Respondent acknowledges she can access. Respondent also declares that she wishes this arrangement to continue.

The court imputes minimum wage for fast food workers (\$20.00 per hour (Lab. Code, § 1475, subd. (d)(2)(A)) to the Respondent for 30 hours per week (as opposed to 40 hours per week, given the fact that Respondent has primary custody of the parties' children). This results in imputed income to Respondent of \$600.00 per week, and \$2,600.00 per month. Respondent's income from the Coast Guard (\$10,897.06 / 8 months = \$1,362.00 per month, rounded down to closest dollar) constitutes other taxable income; and Respondent's monthly VA Disability benefits (\$4,428.00) constitute other nontaxable income. Respondent also has monthly health insurance expenses of \$438.00.

As shown in the attached XSpouse calculation printout, Petitioner is ordered to pay Child Support to the Respondent in the amount of \$1,870.00, and Spousal Support to the Respondent in the amount of \$12.00, beginning June 01, 2026, and the first of each month thereafter until further order of the court. The court orders the Petitioner to pay \$542.30 Child Support and \$3.48 Spousal Support for the month of May 2026 (29 percent of the monthly support amounts).

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The court denies Respondent's request for need-based attorney fees and costs without prejudice. Based upon the parties' I&Es, it appears that both parties can continue to afford their respective attorney fees without assistance from the other party.

TENTATIVE RULING #1: THE RFO IS GRANTED IN PART AND DENIED IN PART. PETITIONER IS ORDERED TO PAY CHILD SUPPORT TO THE RESPONDENT IN THE AMOUNT OF \$1,870.00, AND SPOUSAL SUPPORT TO THE RESPONDENT IN THE AMOUNT OF \$12.00, BEGINNING JUNE 01, 2026, AND THE FIRST OF EACH MONTH THEREAFTER UNTIL FURTHER ORDER OF THE COURT. THE COURT ORDERS THE PETITIONER TO PAY RESPONDENT \$542.30 CHILD SUPPORT AND \$3.48 SPOUSAL SUPPORT FOR THE MONTH OF MAY 2026 (29 PERCENT OF THE MONTHLY SUPPORT AMOUNTS).

WITH RESPECT TO CHILD SUPPORT, THE COURT SETS A FURTHER REVIEW HEARING AT 8:30 A.M., WEDNESDAY, AUGUST 19, 2026, AT WHICH TIME, THE COURT WILL DETERMINE WHETHER ANY ADJUSTMENTS WILL BE REQUIRED FOLLOWING THE UPCOMING CCRC REPORT. THE COURT DIRECTS BOTH PARTIES TO FILE AND SERVE THEIR UPDATED INCOME & EXPENSE DECLARATION NO LATER THAN AUGUST 7, 2026.

THE COURT DENIES RESPONDENT'S REQUEST FOR ATTORNEY FEES AND COSTS WITHOUT PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

2026

Xspouse 2026-1-CA

Monthly Figures

Fixed Shares	Father	Mother	Monthly Figures		Cash Flow	
			2026		Guideline	Proposed
Number of children	0	2			17361	17425
Percent time with NCP	25.00%	0.00%			0%	0%
Filing status	SINGLE HH/MLA		GUIDELINE			
Number of exemptions	1	3	Nets (adjusted)			
Wages and salary	6066	2600	Father	9285	Father	
Self employed income	0	0	Mother	8076	Payment cost/benefit	-1882 -1788
Other taxable income	0	1362	Total	17361	Net spendable income	7402 7497
TANF CS received	0	0	Support		Change from guideline	0 94
Other nontaxable income	4568	4428	Addons	0	% of combined spendable	43% 43%
New spouse income	0	0	Guideln CS	1870	% of saving over guideline	0% 147%
Employee 401-k contribution	0	0	Alameda SS	12	Total taxes	1349 901
Adjustments to income	0	0	Total	1882	Dep. exemption value	0 0
SS paid prev marriage	0	0	Proposed		# withholding allowances	0 0
CS paid prev marriage	0	0	Tactic 9		Net wage paycheck	4515 4515
Health insurance	0	438	CS	2031	Mother	
Other medical expenses	0	0	SS	205	Payment cost/benefit	1882 1852
Property tax expenses	0	0	Total	2236	Net spendable income	9958 9928
Ded interest expense	0	0	Saving	64	Change from guideline	0 -30
Contribution deduction	0	0	Releases	2	% of combined spendable	57% 57%
Misc tax deductions	0	0			% of saving over guideline	0% -47%
Qualified business income deduction	0	0			Total taxes	-124 260
Required union dues	0	0			Dep. exemption value	0 0
Mandatory retirement	0	0			# withholding allowances	0 0
Hardship deduction	0	0			Net wage paycheck	2237 2237
Other GDL deductions	0	0				
Child care expenses	0	0				

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	25 - 75	0	0	0 Father	1,870 Father	1,870 Father
0000-00-00	25 - 75	0	0	0 Father	674 Father	674 Father
0000-00-00	25 - 75	0	0	0 Father	1,196 Father	1,196 Father

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8:30 a.m.

2. ERNESTO MAZAR KINDELAN V. KARI GILSON

24FL0826

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on May 13, 2026, to clarify/confirm the existing Summer 2026 parenting schedule; Petitioner seeks no modification of the parenting schedule. The RFO included a request for temporary emergency orders, which the court denied. However, the court issued an order shortening time. The court ordered Petitioner to serve the RFO on or before May 22, 2026; and ordered the Respondent to file and serve a Responsive Declaration on or before June 08, 2026. The hearing was originally scheduled for June 17, 2026.

Proof of service filed May 15, 2026, shows Petitioner's RFO and supporting papers were electronically served upon Respondent that same day.

On June 03, 2026, Respondent filed a request to continue the hearing. That same day, Petitioner filed a Responsive Declaration to the Request to Reschedule Hearing. The court granted Respondent's request and continued the hearing to July 01, 2026.

On June 17, 2026, Petitioner filed a Declaration (Judicial Council form MC-030) regarding the procedural circumstances of Respondent's June 03, 2026, request to continue the hearing and indicated that the instant RFO may become moot given the timing of the continued hearing. Proof of service filed June 18, 2026, shows this declaration was electronically served upon Respondent on June 17, 2026.

On June 22, 2026, Petitioner filed another Declaration (MC-030), a copy of which was electronically served upon Respondent June 19, 2026, according to the proof of service filed June 22, 2026.

**TENTATIVE RULING #2: APPEARANCES ARE REQUIRED AT 8:30 A.M.,
WEDNESDAY, JULY 01, 2026, IN DEPARTMENT 12.**